

BLANKET PURCHASE AGREEMENT (BPA) TERMS

PSC M2BZ: Husbanding Services – Other Port Services

1. Description of agreement.

The purpose of this agreement is to establish prices, terms, and conditions for services to load and stow subsistence and supplies onboard all U.S. Navy vessels located in Rota, Spain in accordance with the Performance Work Statement (PWS).

Master BPA Limitation: €325,605.00

Ordering Period: One (1) Year

The Master BPA Limitation will be based on EUR currency and all BPA Calls and payments will be made in EUR. For internal purposes, this equates to \$350,000.00 USD based on the FY26 Budget Exchange Rate of \$1.00 = €0.9303.

2. Extent of obligation.

The Government is obligated only to the extent of authorized purchases actually made under the BPA.

3. Purchase limitation.

Individual purchases will be made by a BPA Call issued by NAVSUP FLCSI site Rota. Most BPA Calls will be made in writing, but may also be made orally (telephonically or via e-mail) by a Contracting Officer. BPA Calls made orally will be formalized with issuance of a written BPA Call by NAVSUP FLCSI site Rota.

The minimum BPA call amount will be for 10 pallets. There is no maximum guarantee of what actual services will be required.

The BPA will be considered complete when any BPA Calls issued during the ordering period conclude. Either party may cancel the agreement, provided a written notice is provided with a minimum of 30 days written notification.

4. Individuals authorized to purchase under the BPA.

The following entities may purchase through this BPA:

NAVSUP FLCSI Contracting Officers

Email: M-NA-NAVSUP-FLCSI-C200Rota-SHORE@us.navy.mil

Tel. +34-956-82-1996

The authorized person will assign a call number against the BPA. The Contractor shall obtain the caller's identity and the BPA number to ensure the caller is authorized. The contractor shall not deliver any supplies or services under this agreement that are not being made by the authorized individuals above.

5. Invoices.

Payments shall be in arrears, and in accordance with clause FAR 52.212-4(i). An itemized invoice shall be submitted upon the completion of a BPA Call. The invoice shall reflect the fixed unit prices, quantities, and extended prices. Invoices shall be submitted via email to:

Lorenzo Marquez Pacheco / Irene España

lorenzo.marquezpacheco.ln@us.navy.mil

irene.espanavela.ln@us.navy.mil

M-RO-NAVSUP-FLCSI-LSC@us.navy.mil

The government representatives listed above are responsible for assisting in processing the invoice certification package through the Commercial Bill Pay Office (CBPO) / disbursing in order for the contractor to receive payment under BPA Calls. In the event that the service is paid by GCPC, the payment transaction shall occur immediately upon receipt of services.

6. Pricing

The contractor agrees to honor the following Not-To-Exceed prices for this BPA. Rates may be reviewed annually and updated by mutual agreement of parties:

Price Per Cubic Meter Pallet: €XXX

7. IVA / VAT

All prices shall be exempt of taxes from which the U.S. Government is exempt, in accordance with DFARS clause 252.229-7005 Tax Exemptions (Spain). Specifically, any individual purchase exceeding €600.00 must exclude Spanish IVA/VAT in accordance with Boletín Oficial del Estado Num 45 (21 Feb 2003).

BPA Calls that under EUR 600.00 will be issued with VAT included in the Call price, and the Call will specify so. If, due to subsequent modifications, the total amount increases over EUR 600.00, the contractor shall submit its invoice without VAT.

8. Multiple BPA Holders

In the event the Government establishes a BPA with more than one (1) contractor, the Government will follow these procedures when placing calls:

- a) If the estimated value of the BPA Call is less than the micro-purchase threshold (currently \$15,000 USD), the Government will typically rotate BPA Calls amongst the multiple contractors, provided the prices are fair and reasonable.
- b) If the estimated value of the BPA Call is more than the micro-purchase threshold (currently \$15,000 USD), the Government will typically compete the BPA Call amongst the multiple contractors and select the most advantageous quote. As part of this process, the Government will ask contractors to submit their best prices for that particular BPA Call, which can be lower than those outlined in Section 8 of this agreement.

9. Contractor Performance Survey

Contractor's performance shall be monitored at the completion of each BPA Call through a closeout verification process. The Government may confirm that services were delivered satisfactorily, including resolution of any reported incidents through direct discussion with the Contractor, supported by a written record of the discussion and subsequent communication to the Contracting Department. Additionally, the number of pallets moved during the evolution will be verified and signed off by ship personnel as complete and conforming. These verification results will be considered in future BPA Call awards.